

LAW AND MOTION TENTATIVE RULINGS

DATE: JULY 16, 2026 TIME: 8:30 A.M.

TENTATIVE RULINGS ARE NOT POSTED IN UNLAWFUL DETAINER CASES

Notice to prevailing parties: Local Rule 2.10.01 requires you to submit a proposed formal order incorporating, verbatim, the language of any tentative ruling – or attaching and incorporating the tentative by reference - or an order consistent with the announced ruling of the Court, in accordance with California Rule of Court 3.1312. **Such proposed order is required even if the prevailing party submitted a proposed order prior to the hearing with two exceptions: (1) in unopposed matters where the moving party has provided a detailed proposed order or JCC form of order, or (2) where the tentative is simply to “grant”.** Failure to comply with Local Rule 2.10.01 may result in the imposition of sanctions following an order to show cause hearing, if a proposed order is not timely filed.

No. 25CV03639

PIZARRO v. HAVOR DISTRIBUTING

DEFENDANT PATRICIO’S MOTION FOR LEAVE TO FILE CROSS-COMPLAINT

The demurrer is overruled as it is moot.

Plaintiffs filed a wrongful death complaint and survival action, alleging negligence and dangerous condition of a public property pursuant to Government Code section 830 and 835. On April 13, 2026, defendant City of Watsonville filed a demurrer to the second cause of action, asserting that it is statutorily immune from the claims and the complaint fails to allege any physical defect to the property itself. Presumably in lieu of filing an opposition, on June 30, 2026, plaintiffs filed a First Amended Complaint, again alleging negligence and dangerous condition of public property. Therefore, the demurrer is overruled as moot, given the newly filed First Amended Complaint. [“The filing of the first amended complaint rendered Pueblo's demurrer moot” as an amended pleading supersedes the original. (*Sylmar Air Conditioning v. Pueblo Contracting Services, Inc.* (2004) 122 Cal.App.4th 1049, 1054.).]